



CHAPTER xix.

An Act to confirm a Scheme of the Charity Commissioners for the application or management of the charities collectively known as the Bread Charities in the ancient parish of Maidstone in the county of Kent.

A.D. 1932.

[16th June 1932.]

WHEREAS the Charity Commissioners in their report to His Majesty of their proceedings during the year one thousand nine hundred and thirty-one reported that they had approved and certified a Scheme for the application or management of the following charities collectively known as the Bread Charities in the ancient parish of Maidstone in the county of Kent :—

1. The Charity of William Hewett founded by Indenture dated 8th January 1567;
2. The Charity of Sir Henry Cutts founded in the year 1602;
3. The Charity known as the Bread Charity otherwise known as the Charity of an Unknown Donor;
4. The Charity known as Bell's and Rose's Charity founded prior to the year 1800;
5. The Charity of Peter Pope founded in the year 1809;
6. The Charity called an Easter Offering from Friends of the Poor regulated by a Declaration of Trust dated 25th November 1891:

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And whereas it is expedient that the Scheme as the same is fully set out and defined in the Schedule to this Act should be confirmed :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Confirma-
tion of
scheme.

1. The said Scheme is hereby confirmed Provided always that nothing in this Act or in the said Scheme shall be held to interfere with the ordinary jurisdiction over endowed charities now exerciseable or hereafter to become exerciseable by the High Court of Justice and the Charity Commissioners.

Short title.

2. This Act may be cited as the Maidstone Bread Charities Scheme Confirmation Act 1932.

SCHEDULE.

A.D. 1932.

Scheme for the application or management of the following Charities collectively known as the Bread Charities in the Ancient Parish of Maidstone in the County of Kent :—

- (1) *The Charity of William Hewett founded by Indenture dated 8th January 1567 ;*
- (2) *The Charity of Sir Henry Cutts founded in the year 1602 ;*
- (3) *The Charity known as the Bread Charity otherwise known as the Charity of an Unknown Donor ;*
- (4) *The Charity known as Bell's and Rose's Charity founded prior to the year 1800 ;*
- (5) *The Charity of Peter Pope founded in the year 1809 ;*
- (6) *The Charity called an Easter Offering from Friends of the Poor regulated by a Declaration of Trust dated 25th November 1891.*

1. *Administration of Charities.*—From and after the date of this Scheme the above-mentioned charities and the endowments thereof specified in the Schedule hereto and all other the endowments (if any) of the said charities shall be administered and managed by the body of Trustees hereinafter constituted subject to and in conformity with the provisions of this Scheme under the title of the Bread Charities.

TRUSTEES.

2. *Trustees.*—The body of Trustees shall when complete consist of eleven competent persons being—

Three ex-officio Trustees ;
Six representative Trustees ; and
Two coöptative Trustees.

3. *Ex-officio Trustees.*—The ex-officio Trustees shall be—

The MAYOR for the time being of the Borough of Maidstone ; and
The CHURCHWARDENS for the time being of the Ecclesiastical Parish of All Saints Maidstone.

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4. *Representative Trustees.*—The representative Trustees shall subject as hereinafter provided with respect to the first representative Trustees be appointed by the council of the borough of Maidstone. Each appointment shall be made for a term of four years at a meeting convened and held according to the ordinary practice of the council. The chairman of the meeting shall forthwith cause the name of each person appointed to be notified to the Trustees or their clerk. The person appointed may be but need not be a member of the council.

5. *First Representative Trustees.*—The following persons being members of the said council shall if living at the date of this Scheme and willing to act be the first representative Trustees and shall be entitled subject to the provisions hereinafter contained with respect to determination of Trusteeship to hold office for four years from the said date :—

Alderman ALBERT TIMOTHY EPPS;
Councillor FRANCIS RICHARD CONNOR;
Councillor WILLIAM ROBERT HYDE;
Councillor CHARLES GORDON LARKING;
Councillor SAMUEL JAMES LYLE; and
Councillor WILLIAM HENRY MARTIN:

Provided that if at the end of two years from the date of this Scheme more than three of the said persons remain Trustees one-half of them as nearly as may be to be determined by lot if necessary shall go out of office but shall be eligible for reappointment.

6. *Coöptative Trustees.*—The coöptative Trustees shall be persons residing or carrying on business in or near Maidstone.

7. *First Coöptative Trustees.*—The following persons shall if living at the date of this Scheme and willing to act be the first coöptative Trustees and shall be entitled subject to the provisions hereinafter contained with respect to determination of Trusteeship to hold office for five years from the date of this Scheme :—

HENRY ROY PRATT BOORMAN of The Cedars Bower Mount Road newspaper proprietor; and
THOMAS JAMES NEWTON of No. 32 Hastings Road of no occupation both in Maidstone.

8. *Future Coöptative Trustees.*—Every future coöptative Trustee shall be appointed for a term of five years by a resolution of the Trustees to be passed at a special meeting.

9. *Declaration by Trustees.*—No person shall be entitled to act as a Trustee whether on a first or on any subsequent entry into office until after signing in the minute book of the Trustees a declaration of acceptance and of willingness to act in the trusts of this Scheme.

10. *Determination of Trusteeship.*—Any coöptative Trustee who ceases to be qualified as aforesaid any representative or coöptative Trustee who is absent from all meetings of the Trustees during a period of one year and any Trustee who is adjudged bankrupt or makes a composition or arrangement with his creditors or who is incapacitated from acting or who communicates in writing to the Trustees a wish to resign shall thereupon cease to be a Trustee. A.D. 1932.
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11. *Vacancies.*—Upon the occurrence of a vacancy the Trustees shall at their next meeting cause a note thereof to be entered in their minute book and in the case of a vacancy in the office of representative Trustee shall cause notice thereof to be given as soon as possible to the said council. Any competent Trustee may be re-appointed. No vacancy in the office of coöptative Trustee shall be filled till after the lapse of one calendar month from its occurrence.

MEETINGS AND PROCEEDINGS OF TRUSTEES.

12. *Ordinary Meetings.*—The Trustees shall hold at least two ordinary meetings in each year.

13. *First Meeting.*—The first meeting of the Trustees shall be summoned by the said mayor or if he fails for two calendar months after the date of this Scheme to summon a meeting by any two of the Trustees.

14. *Chairman.*—The Trustees shall at their first ordinary meeting in each year elect one of their number to be chairman of their meetings until the commencement of the first ordinary meeting in the following year. The chairman shall always be eligible for re-election. If at any meeting the chairman is not present within ten minutes after the time appointed for holding the same or there is no chairman the Trustees present shall choose one of their number to be chairman of the meeting.

15. *Special Meetings.*—A special meeting may at any time be summoned by the chairman or any two Trustees upon four days' notice being given to all the other Trustees of the matters to be discussed.

16. *Quorum.*—There shall be a quorum when four Trustees are present at a meeting.

17. *Voting.*—Every matter shall be determined by the majority of votes of the Trustees present and voting on the question. In case of equality of votes the chairman of the meeting shall have a casting vote whether he has or has not previously voted on the same question but no Trustee shall in any other circumstances give more than one vote.

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18. *Minutes and Accounts.*—A minute book and books of account shall be provided and kept by the Trustees. All proper accounts in relation to the charities shall in each year be made out and certified in such manner as the Charity Commissioners require and copies thereof shall be transmitted to the said Commissioners and published in conformity with the provisions of the Charitable Trusts Acts.

19. *General Power to make Regulations.*—Within the limits prescribed by this Scheme the Trustees shall have full power from time to time to make regulations for the management of the charities and for the conduct of their business including the summoning of meetings the deposit of money at a proper bank and the custody of documents.

20. *Clerk.*—The Trustees may appoint some fit person to be their clerk and to hold office during their pleasure and may pay to him (not being a Trustee) such reasonable salary as they think fit.

MANAGEMENT OF LANDS.

21. *Allotments Extension Act 1882.*—The Trustees may set apart and let in allotments in the manner prescribed by and subject to the provisions of the Allotments Extension Act 1882 any portion of the land belonging to the charity known as the Bread Charity other than buildings and the appurtenances of buildings.

22. *Management and Letting of Lands.*—Subject as aforesaid all the lands belonging to the said charity not required to be retained or occupied for the purposes thereof shall be let and otherwise managed by the Trustees. In every case public notice of the intention to let any land shall be given by the Trustees in such manner as they consider most effectual for ensuring full publicity. The Trustees shall not create any tenancy in reversion after more than 3 years of any existing term or for more than 21 years certain or for less than the improved annual value at rackrent without the sanction of the Charity Commissioners or a competent court.

23. *Leases.*—The Trustees shall provide that on the grant by them of any lease the lessee shall execute a counterpart thereof and every lease shall contain covenants on the part of the lessee for the payment of rent and all other usual and proper covenants applicable to the property comprised therein and a proviso for re-entry on non-payment of the rent or non-performance of the covenants.

24. *Repair and Insurance.*—The Trustees shall keep in repair and insure against fire all the buildings of the said charity not required to be kept in repair and insured by the lessees or tenants thereof.

APPLICATION OF INCOME.

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25. *Expenses of Management.*—The cost of repairs and insurance and all other charges and outgoings payable in respect of the property of the charities and all the proper costs charges and expenses of and incidental to the administration and management of the charities shall be first defrayed by the Trustees out of the income thereof.

26. *General Benefit of Poor.*—Subject to the payments aforesaid the yearly income of the charities shall be applied by the Trustees in making payments under one or more of the following heads for the benefit either of the poor of the borough of Maidstone as constituted for the time being generally or of such poor persons resident therein and not in receipt of poor-law relief other than medical relief as the Trustees select for this purpose and in such way as they consider most advantageous to the recipients and most conducive to the formation of provident habits :—

I. Subscriptions or donations in aid of the funds of any dispensary infirmary hospital or convalescent home or any establishment in which persons suffering from any bodily infirmity are taught any trade or employment whether general or special upon such terms (so far as may be) as to enable the Trustees to secure the benefits of the institution for the objects of the charities :

II. Grants or contributions for or towards—

(a) The provision of nurses and of medical and surgical assistance for the sick and infirm including medical and surgical appliances medicines and comforts or necessities ;

(b) The travelling expenses of patients to and from such institutions as are above mentioned in paragraph I ;

(c) The assistance of persons qualified as aforesaid who are under the age of 21 years and who are preparing for entering upon or engaged in any trade occupation or service by outfitting payment of fees for instruction payment of travelling expenses or such other means for their advancement in life or to enable them to earn their own living as the Trustees think fit :

III. The supply of clothes boots linen bedding fuel tools food or other articles in kind.

27. *Supplemental Provisions.*—The application of the income of the charities under the last preceding clause hereof shall be subject to the following provisions :—

(1) The said income shall in no case be applied in aid of any rates for the relief of the poor or other purposes or so

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that any individual or institution may become entitled to a periodical or recurrent benefit therefrom :

- (2) Assistance to individuals shall only be granted after full investigation of the character and circumstances of the proposed beneficiaries and inquiry whether they have shown reasonable providence and whether and to what extent they may reasonably expect assistance from relations or others :
- (3) In applying the said income the Trustees may avail themselves of the agency of any charity organisation society or other like agency.

GENERAL PROVISIONS.

28. *Appropriation of Benefits.*—The appropriation of the benefits of the charities shall be made by the Trustees from time to time at meetings of their body and not separately by any individual Trustee or Trustees.

29. *Investment of Cash.*—All sums of cash at any time belonging to any of the charities and not needed for immediate working purposes shall (unless otherwise ordered) as soon as possible be invested under the authority of a further Order of the Charity Commissioners in the name of " The Official Trustees of Charitable Funds."

30. *Trustees not to be personally interested.*—No Trustee shall take or hold any interest in property belonging to the charities otherwise than as a Trustee for the purposes thereof and no Trustee shall receive any remuneration or be interested in the supply of work or goods at the cost of the charities.

31. *Alteration of Scheme.*—The Charity Commissioners may from time to time in the exercise of their ordinary jurisdiction establish schemes for the alteration of any of the provisions of this Scheme as if these provisions had been made by the founder in the case of a charity having a founder.

32. *Questions under Scheme.*—Any question as to the construction of this Scheme or as to the regularity or the validity of any acts done or about to be done under this Scheme shall be determined conclusively by the Charity Commissioners upon such application made to them for the purpose as they think sufficient.

33. *Date of Scheme.*—The date of this Scheme shall be the date of the Act of Parliament confirming the same.

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SCHEDULE OF PROPERTY.

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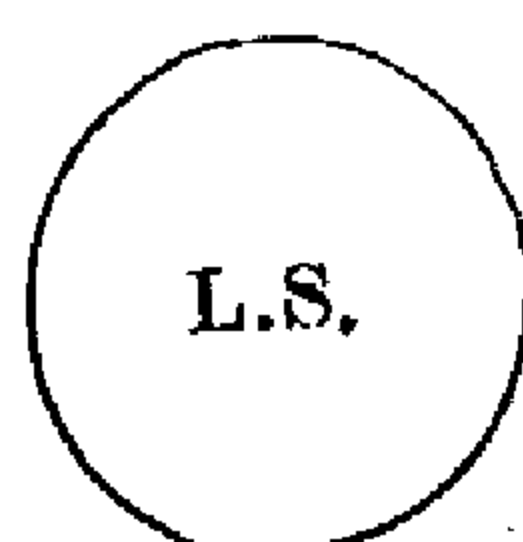
Description.	Tenant Person liable or Persons in whose Name invested.	Gross Yearly Income.
<i>Charity of William Hewett.</i>		
		£ s. d.
Rentcharge charged upon or issuing out of Boxley House in the parish of Boxley in the county of Kent.	Robert H. Style -	1 6 8
Rentcharge charged upon or issuing out of land situate near Marland's Stile in the parishes of Boxley and Maidstone and containing 21 acres or thereabouts.	Mrs. Best-Dalison -	1 6 8
<i>Charity of Sir Henry Cutts.</i>		
Rentcharge charged upon or issuing out of No. 98 High Street Maidstone.	W. T. Cox -	2 12 0
<i>The Bread Charity.</i>		
A builder's yard workshop and buildings situate in Mill Street formerly Knightrider Street Maidstone.	Messrs. Pearce & Son 21 years from 25th March 1919.	90 0 0
Site for telegraph pole - - -	Postmaster-General -	0 1 0
Warehouses and cottage situate in Mill Street Maidstone.	C. M. Cassie 3 years from 29th September 1930.	90 0 0
Small piece of land in rear of last-mentioned cottage.	Maidstone Corporation	0 2 6
Small yard and privy situate in Mill Street Maidstone.	Baptist Chapel Trustees	0 7 6
Acknowledgment rent for right of light to Baptist Chapel.	Do. do.	0 0 6
£780 9s. 5d. 2½ per cent. consolidated stock.	"The Official Trustees of Charitable Funds."	19 10 0
£2,378 18s. 5d. New Zealand 3 per cent. stock.	Do. do.	71 7 4
£150 Maidstone Corporation 5 per cent. mortgage.	The Trustees of the Maidstone Bread Charity.	7 10 0
£100 Maidstone Corporation 4½ per cent. mortgage.	Do. do.	4 15 0
<i>Bell's and Rose's Charity.</i>		
£129 4s. India 3 per cent. stock	The said Official Trustees	3 17 4

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Description.	Tenant Person liable or Persons in whose Name invested.	Gross Yearly Income.
<i>Charity of Peter Pope.</i>		£ s. d.
£134 6s. 9d. 2½ per cent. consolidated stock.	The said Official Trustees	3 7 0
<i>Easter Offering from Friends of the Poor.</i>		
£211 14s. 8d. India 3 per cent. stock.	Do. do.	6 7 0

NOTE.—The above-mentioned hereditaments were vested in “The Official Trustee of Charity Lands” by an Order of the Charity Commissioners of the 30th August 1889.



Sealed by Order of the Board this 23rd day of
December 1931.

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